

Bipin Paswan Aged About 44 Years vs The State Of Jharkhand on 5 March, 2025

Author: Navneet Kumar

Bench: Navneet Kumar

IN THE HIGH COURT OF JHARKHAND AT RANCHI
Cr. Appeal (SJ) No.496 of 2024

Bipin Paswan aged about 44 years, son of Shri Baleshwar Dusadh, resident of Nagar (Near Hanuman Mandir), Putki, P.O. Kusunda, P.S. Putki, Town Dhanbad, District - Dhanbad
..... Appellant

Versus

1. The State of Jharkhand
2. Jai Ram Kumar Singh
.... Respondents

CORAM: HON'BLE MR. JUSTICE NAVNEET KUMAR

For the Appellant : Mr. Pradyot Chatterjee, Advocate
For the State : Mrs. Nehala Sharmin, Spl. PP

4/05.03.2025 Heard learned counsel appearing on behalf of the appellant and learned APP appearing on behalf of the State.

2. This appeal is filed against the order dated 30.04.2024 passed in SC/ST Case No.04 of 2024 by learned Special Judge SC/ST Act, Dhanbad, whereby and whereunder the complaint filed by the complainant has been dismissed.

3. Learned counsel appearing on behalf of the appellant fairly submitted that on earlier occasion the Respondent No. 2 had filed a check bounce case on the false allegation that the cheques have been drawn by the appellant in favour of the Respondent No.2.

4. While as a matter of fact, the cheques of the appellant were lost and it has been misused by the Respondent No. 2 by filing a cheque bounce case against the appellant.

5. It has further been submitted that this appellant has lodged an FIR for the loss of the cheques from the very next date and the bank was also duly informed by which the payment through those cheques have been withheld on the basis of the request of a stop payment by the Appellant.

6. In view of these facts, learned counsel appearing on behalf of the appellant seeks permission to withdraw this appeal with liberty to raise all the points before the concerned cheque bounce case, which is said to have been filed against the appellant by the respondent No.2.

7. Accordingly, this appeal is dismissed as withdrawn with liberty to raise all the points before the concerned cheque bounce case, which is said to have been filed by the respondent No.2 against the appellant.

(Navneet Kumar, J.) R.Kumar